



File No.: EXP202210511

RESOLUTION No.: R/00126/2023

Considering the complaint filed on October 4, 2022, with this Agency by A.A.A. against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant), by means of an email dated July 5, 2022, exercised the right of access before ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. with NIF B82064833 (hereinafter, the respondent) and their request, as stated by the complainant, did not receive the legally established response.

The complainant provides various documents regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated them, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month, without any response being recorded.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on December 7, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced with the admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present any allegations it deemed appropriate. This entity stated, in summary, that, unless there was an error, they do not have record of the transfer of the complaint made by this Agency.

They state that they have consulted their Consumer Service and confirm that, on July 20, 2022, they attended to the complainant's right by sending the data to the email provided by them, attaching a copy of it.

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Notwithstanding the above, upon becoming aware of the present procedure, they have sent a new document providing the data again.

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the complainant, so that, within fifteen working days, they can formulate any allegations they consider appropriate, without any response being recorded in this Agency.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and

the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to prove that they had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the period for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant.”

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procedure. After this period, the interested party may consider their claim accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such a request.

The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, according to what is established in Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be understood as granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request information regarding the aspects provided in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if the data has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

FIFTH: In the case analyzed here, from the examination of the documentation provided by the parties during the procedure, it has been established that the claimant requested access to their data from the respondent, and that the latter complied with the aforementioned right within the legally established timeframe.

Consequently, it is appropriate to dismiss the present claim for rights.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L.

SECOND: TO NOTIFY this resolution to A.A.A. and to ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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